

Opinion of the Court.

"POST OFFICE DEPARTMENT,

"OFFICE OF THE THIRD ASSISTANT POSTMASTER GENERAL,

"DIVISION OF FINANCE, WASHINGTON, D. C., —, 188—.

"SIR: Herewith inclosed you will find warrant payable to your order for \$—, which is in full liquidation of your claim for the balance unpaid of the readjusted salary of —, postmaster at —, State of —.

"In transmitting it I am directed by the Postmaster General to advise you that in the act of 1883, which provided for readjustments of salary, the Congress directed that all checks or warrants should be made payable to the claimants and transmitted direct to them, and that in the appropriation and enactment on this subject by Congress, a copy of which is printed at the foot of this note, the direction was repeated. This was done because no attorney's services were necessary to the presentation of the claim before the department, and the Congress desired all the proceeds to reach the person really entitled thereto. After a claim of this character is filed in the department its examination and the readjustment of the salary, if found proper, are made directly from the books and papers in the department by its officers, and without further evidence.

"You are further advised that by section 3477 of the Revised Statutes, a copy of which is also printed at the foot of this note, any transfer of this claim or power of attorney for receiving payment of this warrant is null and void.

"Yours respectfully,

J. H. HARRIS,

"*Third Assistant Postmaster General.*

"—, —,

"—, —.

"See statutes referred to on next leaf;"

It was alleged that the said circular was intended to deceive and did deceive the said claimants, who believed what the defendant meant and intended, as hereinbefore stated, of and concerning the plaintiff, and was false in the following respects, to wit: (1) that "in the act of 1883, which provided for readjustments of salary, the Congress directed that all